

**JUVENILE ACCOUNTABILITY BLOCK GRANT CONTRACT
WYOMING DEPARTMENT OF FAMILY SERVICES,
DIVISION OF JUVENILE SERVICES AND
THE CITY OF CHEYENNE**

1. **Parties.** The parties to this Contract are the Wyoming Department of Family Services, Division of Juvenile Services, whose address is Hathaway Building, Third Floor, Cheyenne, WY 82002-0490 (Agency), and the City of Cheyenne, whose address is 2101 O'Neil Avenue, Cheyenne, WY 82001 (Contractor).

2. **Purpose of Contract.** Per Attachment A, which is attached and incorporated herein by reference, the Contractor shall provide Court Staffing for the Cheyenne Municipal Juvenile Court, under the 2010 Juvenile Accountability Block Grant (JABG).

3. **Term of Contract and Required Approvals.** This Contract is effective when all parties have executed it and all required approvals have been granted. The term of the Contract is from July 1, 2011 through December 31, 2012. All services shall be completed during this term. This Contract may be renewed once by agreement of both parties in writing and subject to the required approvals. There is no right or expectation of renewal and any renewal will be determined at the discretion of the Agency.

By law, contracts for professional or other services must be approved as to form by the Attorney General and approved by the Department of Administration & Information, Procurement Services Division (A&I Procurement), Wyo. Stat. § 9-1-403(b)(v), and all contracts for services costing over One Thousand Five Hundred Dollars (\$1,500.00) must be approved by the Governor or his designee as well, Wyo. Stat. § 9-2-1016(b)(iv).

4. **Payment.** Agency agrees to pay Contractor for the services described in Attachment A. The total payment under this Contract shall not exceed Twenty-Seven Thousand Three Hundred Thirty Dollars (\$27,330.00). This amount requires a cash match of Two Thousand Seven Hundred Thirty-Three Dollars (\$2,733.00) by the Contractor. Quarterly payment shall be made upon receipt of the required invoice and program report. When submitting invoices, the Contractor shall reference Contract No. JB-10-002. The source of funds for this Contract is the Juvenile Accountability Block Grant (JABG), CFDA #16.523. No payment shall be made for services performed before the date upon which the last required signature is affixed to this Contract.

If the Contractor's yearly total of contracted dollars exceeds Five Hundred Thousand Dollars (\$500,000.00) of federal funds, regardless of the source, the Contractor is required to have a single or program-specific audit conducted in accordance with the Office of Management and Budget (OMB) Circular A-133. The Contractor shall furnish Agency a copy of the final audit, along with the Contractor's response to the audit.

5. **Responsibilities of Contractor.** The Contractor shall:

- A. Comply with requirements outlined in Attachment A;
- B. File quarterly progress and expenditure reports to Agency per Attachment B, which is attached and incorporated herein by reference;
- C. Maintain a Juvenile Crime Enforcement Coalition;
- D. Supply a membership list and meeting schedule to Agency; and
- E. Provide the Agency a copy of annual compliance audit or financial statement.

6. **Responsibilities of Agency.** The Agency shall:

- A. Conduct a monitoring site-visit and an evaluation of the overall JABG project;
- B. Provide technical assistance, consultation, and coordination as needed and requested by the Contractor; and
- C. Approve or disapprove the invoice submitted by the Contractor for payment.

7. **Special Provisions**

A. **Administration of Federal Funds.** Contractor agrees its use of the funds awarded herein is subject to the Uniform Administrative Requirements of OMB Circulars A-102 and/or 2 C.F.R. Part 215; the cost principles set forth in OMB Circulars A-21, A-87 or A-122 and 48 C.F.R. Part 31; the audit requirements of OMB Circular A-133; and all applicable regulations published in the Code of Federal Regulations or other program guidance as provided to it by Agency.

B. **Copyright License and Patent Rights.** Contractor acknowledges that Administration for Children and Families, the State of Wyoming, and Agency reserve a royalty-free, non-exclusive, unlimited and irrevocable license to reproduce, publish, or otherwise use, and to authorize others to use, for federal and state government purposes: (1) the copyright in any work developed under this Contract; and (2) any rights of copyright to which Contractor purchases ownership using funds awarded under this Contract. Contractor must consult with Agency regarding any patent rights that arise from, or are purchased with, funds awarded under this Contract.

C. **Environmental Policy Acts.** Contractor agrees all activities under this Contract will comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules or regulations.

D. Federal Audit Requirements. Contractor agrees that if it expends an aggregate amount of Five Hundred Thousand Dollars (\$500,000.00) or more in federal funds during its fiscal year, it must undergo an organization-wide financial and compliance single audit. Contractor agrees to comply with the audit requirements of the U.S. General Accounting Office Government Auditing Standards and OMB Circular A-133, Audits of States, Local Governments, and Non-Profit Organizations. If findings are made which cover any part of this Grant, Contractor shall provide one (1) copy of the audit report to Agency and require release of the audit report by its auditor be held until adjusting entries are disclosed and made to Agency's records.

E. Human Trafficking. As required by 22 U.S.C. 7104(g) and 2 C.F.R. Part 175, this agreement may be terminated without penalty if a private entity that receives funds under this agreement:

- (i) Engages in severe forms of trafficking in persons during the period of time that the award is in effect;
- (ii) Procures a commercial sex act during the period of time that the award is in effect; or
- (iii) Uses forced labor in the performance of the award or sub awards under the award.

F. Limitations on Lobbying Activities. In accordance with P.L. 101-121, payments made from a federal grant shall not be utilized by the Contractor or its subcontractors in connection with lobbying Congressmen, or any other federal agency in connection with the award of a federal grant, contract, cooperative agreement, or loan. The Contractor and its subcontractors shall submit a certification statement and disclosure form acceptable to the Agency before commencement of the work.

G. Limitations of Payment. The Agency's obligation to pay the Contractor for services rendered pursuant to this Contract is conditioned upon the availability of state or federal government funds which are allocated to pay the Contractor. If funds are not allocated and available for the Agency to pay the Contractor for these services, the Agency may terminate this Contract at the end of the period for which the funds are available.

The Agency shall notify the Contractor at the earliest possible time if this Contract will or may be affected by a shortage of funds. No liability shall accrue to the Agency in the event this provision is exercised, and the Agency shall not be obligated or liable for any future payments due or for any damages as a result of termination under this section. This provision shall not be construed so as to permit the Agency to terminate this Contract to acquire similar services from another party.

H. Monitor Activities. The Agency shall have the right to monitor all Contract related activities of the Contractor and all subcontractors. This shall include, but not limited to, the right to make site inspections at any time, to bring experts and consultants on site

to examine or evaluate completed work or work in progress, and to observe all Contractor personnel in every phase of performance of Contract related work.

I. No Finder's Fee. No finder's fee, employment agency fee, or other such fee related to the procurement of this Contract shall be paid by either party.

J. Nondiscrimination. The Contractor shall comply (and will require any subgrantees or contractors to comply) with any applicable statutorily-imposed nondiscrimination requirements, which may include the Omnibus Crime Control and Safe Streets Act of 1968 (42 U.S.C. 3789d); the Victims of Crime Act (42 U.S.C. 10604(e)); the Juvenile Justice and Delinquency Prevention Act of 2002 (42 U.S.C. 5672(b)); the Civil Rights Act of 1964 (42 U.S.C. 2000d); the Rehabilitation Act of 1973 (29 U.S.C. 794); the Americans with Disabilities Act of 1990 (42 U.S.C. 12131-34); the Education Amendments of 1972 (20 U.S.C. 1681, 1683, 1685-86); and the Age Discrimination Act of 1975 (42 U.S.C. 6101-07); Ex. Order 13279 (equal protection of the laws for faith-based and community organizations).

The Contractor will take reasonable steps to ensure meaningful access to their programs, services and activities to Limited English Proficiency (LEP) persons, in accordance with Title VI and the Safe Streets Act.

In the event a federal or state court or federal or state administrative agency makes a finding of discrimination after a due process hearing on the ground of race, color, religion, national origin, sex, or disability against a recipient of funds, the Contractor will forward a copy of the finding to the Office for Civil Rights, Office of Justice Programs, and the Department of Family Services (DFS).

The Contractor will provide an Equal Employment Opportunity Program (EEOP) to the Office for Civil Rights, Office of Justice Programs and the Department of Family Services, if required to maintain one; otherwise, it will provide a certification to the Office for Civil Rights, Office of Justice Programs and the Department of Family Services, that it has a current EEOP on file, if required to maintain one. For grantee agencies receiving less than Twenty-Five Thousand Dollars (\$25,000.00); or grantee agencies with less than fifty (50) employees, regardless of the amount of the award, no EEOP is required.

In accordance with federal civil rights laws, the Contractor shall not retaliate against individuals for taking action or participating in action to secure rights protected by these laws. Information about civil rights obligations of grantees can be found at www.ojp.usdoj.gov/ocr.

Procedures for responding to discrimination complaints from employees, clients, customers and/or service recipients of the Department of Family Services is available on the DFS website, Human Resources Division, or can be obtained by calling the DFS Ombudsman, (307) 777-7734, or (800) 457-3659.

K. Non-Supplanting Certification. Contractor hereby affirms that federal grant funds will be used to supplement existing funds, and will not replace (supplant) funds that

have been appropriated for the same purpose. Contractor should be able to document that any reduction in non-federal resources occurred for reasons other than the receipt or expected receipt of federal funds under this Contract.

L. Program Income. Contractor shall not deposit grant funds in an interest bearing account without prior approval of Agency. Any income attributable to the grant funds distributed under this Contract must be used to increase the scope of the program or returned to Agency.

M. Publicity. Any publicity given to the program or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices prepared by or for Contractor and related to the services and work to be performed under this Contract, shall identify Department of Family Services as the sponsoring agency and shall not be released without prior written approval of Agency.

N. Suspension and Debarment. By signing this Contract, Contractor certifies that it is not suspended, debarred, or voluntarily excluded from federal financial or nonfinancial assistance, nor are any of the participants involved in the execution of this Contract suspended, debarred, or voluntarily excluded. Further, Contractor agrees to notify this Agency by certified mail should Contractor or any of its agents become debarred, suspended, or voluntarily excluded during the term of this Contract.

8. General Provisions

A. Amendments. Any changes, modifications, revisions or amendments to this Contract which are mutually agreed upon by the parties to this Contract shall be incorporated by written instrument, executed and signed by all parties to this Contract.

B. Americans with Disabilities Act. The Contractor shall not discriminate against a qualified individual with a disability and shall comply with the Americans with Disabilities Act, P.L. 101-336, 42 U.S.C. 12101, *et seq.*, and/or any properly promulgated rules and regulations related thereto.

C. Applicable Law/Venue. The construction, interpretation and enforcement of this Contract shall be governed by the laws of the State of Wyoming. The Courts of the State of Wyoming shall have jurisdiction over this Contract and the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming. The parties intend and agree that the State of Wyoming and the Agency do not waive sovereign immunity by entering into this Contract, and specifically retain immunity and all defenses available to them as sovereigns pursuant to Wyo. Stat. § 1-39-104(a) and all other state law.

D. Assignment/Contract Not Used as Collateral. Neither party shall assign or otherwise transfer any of the rights or delegate any of the duties set forth in this Contract without the prior written consent of the other party. The Contractor shall not use this Contract, or any portion thereof, for collateral for any financial obligation, without the prior written permission of the Agency.

E. Assumption of Risk. The Contractor shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to Contractor's failure to comply with state or federal requirements. The Agency shall notify the Contractor of any state or federal determination of noncompliance.

F. Audit. The Agency and any of its representatives shall have access to any books, documents, papers, and records of the Contractor which are pertinent to this Contract. The Contractor shall, immediately upon receiving written instruction from the Agency, provide to any independent auditor, accountant, or accounting firm, all books, documents, papers and records of the Contractor which are pertinent to this Contract. The Contractor shall cooperate fully with any such independent auditor, accountant, or accounting firm, during the entire course of any audit authorized by the Agency.

G. Availability of Funds. Each payment obligation of the Agency is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the continuance of the services performed by the Contractor, the Contract may be terminated by the Agency at the end of the period for which the funds are available. The Agency shall notify the Contractor at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to the Agency in the event this provision is exercised, and the Agency shall not be obligated or liable for any future payments due or for any damages as a result of termination under this section. This provision shall not be construed to permit the Agency to terminate this Contract to acquire similar services from another party.

H. Award of Related Contracts. The Agency may undertake or award supplemental or successor contracts for work related to this Contract. The Contractor shall cooperate fully with other contractors and the Agency in all such cases.

I. Compliance with Law. The Contractor shall keep informed of and comply with all applicable federal, state and local laws and regulations in the performance of this Contract.

J. Confidentiality of Information. All documents, data compilations, reports, computer programs, photographs, and any other work provided to or produced by the Contractor in the performance of this Contract shall be kept confidential by the Contractor unless written permission is granted by the Agency for its release.

K. Conflicts of Interest. Contractor shall not engage in providing consultation or representation of clients, agencies or firms which may constitute a conflict of interest which results in a disadvantage to the Agency or a disclosure which would adversely affect the interests of the Agency. Contractor shall notify the Agency of any potential or actual conflicts of interest arising during the course of the Contractor's performance under this Contract. This Contract may be terminated in the event a conflict of interest arises. Termination of the Contract will be subject to a mutual settlement of accounts. In the event the Contract is terminated under this provision, the Contractor shall take steps to insure that the file, evidence,

evaluation and data are provided to the Agency or its designee. This does not prohibit or affect the Contractor's ability to engage in consultations, evaluations or representation under agreement with other agencies, firms, facilities, or attorneys so long as no conflict exists.

A conflict of interest warranting termination of the Contract includes, but is not necessarily limited to, representing a client in an adversarial proceeding against the State of Wyoming, its agencies, boards, commissions or the University of Wyoming, or initiating suits in equity including injunctions, declaratory judgments, writs of prohibition or quo warranto.

L. Entirety of Contract. This Contract, consisting of ten (10) pages, Attachment A, consisting of fourteen (14) pages and Attachment B, consisting of one (1) page, represents the entire and integrated Contract between the parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.

M. Ethics. Contractor shall keep informed of and comply with the Wyoming Ethics and Disclosure Act (Wyo. Stat. § 9-13-101, *et seq.*), and any and all ethical standards governing Contractor's profession.

N. Force Majeure. Neither party shall be liable for failure to perform under this Contract if such failure to perform arises out of causes beyond the control and without the fault or negligence of the nonperforming party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. This provision shall become effective only if the party failing to perform immediately notifies the other party of the extent and nature of the problem, limits delay in performance to that required by the event, and takes all reasonable steps to minimize delays. This provision shall not be effective unless the failure to perform is beyond the control and without the fault or negligence of the nonperforming party.

O. Indemnification. Each party to this Contract shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend or indemnify the other.

P. Independent Contractor. The Contractor shall function as an independent contractor for the purposes of this Contract, and shall not be considered an employee of the State of Wyoming for any purpose. The Contractor shall assume sole responsibility for any debts or liabilities that may be incurred by the Contractor in fulfilling the terms of this Contract, and shall be solely responsible for the payment of all federal, state and local taxes which may accrue because of this Contract. Nothing in this Contract shall be interpreted as authorizing the Contractor or its agents and/or employees to act as an agent or representative for or on behalf of the State of Wyoming or the Agency, or to incur any obligation of any kind on the behalf of the State of Wyoming or the Agency. The Contractor agrees that no health/hospitalization benefits, workers' compensation and/or similar benefits available to State of Wyoming employees will inure to the benefit of the Contractor or the Contractor's agents and/or employees as a result of this Contract.

Q. Kickbacks. The Contractor certifies and warrants that no gratuities, kickbacks or contingency fees were paid in connection with this Contract, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Contract. If the Contractor breaches or violates this warranty, the Agency may, at its discretion, terminate this Contract without liability to the Agency, or deduct from the Contract price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.

R. Notices. All notices arising out of, or from, the provisions of this Contract shall be in writing and given to the parties at the address provided under this Contract, either by regular mail, facsimile, e-mail, or delivery in person.

S. Ownership of Documents/Work Product/Materials. All documents, reports, records, field notes, data, samples, specimens, and materials of any kind resulting from performance of this Contract are at all times the property of the Agency.

T. Prior Approval. This Contract shall not be binding upon either party, no services shall be performed under the terms of this Contract, and the Wyoming State Auditor shall not draw warrants for payment on this Contract, until this Contract has been reduced to writing, approved as to form by the Office of the Attorney General, filed with and approved by A&I Procurement, and approved by the Governor of the State of Wyoming or his designee if required by Wyo. Stat. § 9-2-1016(b)(iv)(D).

U. Sovereign Immunity

(i) The State of Wyoming and the Agency do not waive sovereign immunity by entering into this Contract and specifically retain immunity and all defenses available to them as sovereigns pursuant to Wyo. Stat. § 1-39-104(a) and all other state law.

(ii) The parties intend and agree that the Contractor does not waive governmental immunity by entering into the Contract, and specifically retains immunity and all defenses available to them as a local government entity pursuant to Wyo. Stat. § 1-39-104 *et seq.*, and all other state law.

V. Taxes. The Contractor shall pay all taxes and other such amounts required by federal, state and local law, including but not limited to federal and social security taxes, workers' compensation, unemployment insurance and sales taxes.

W. Termination of Contract. This Contract may be terminated, without cause, by either party upon thirty (30) days written notice. This Contract may be terminated immediately for cause if the Contractor fails to perform in accordance with the terms and conditions of this Contract. Should the Contractor fail to perform in a manner consistent with the terms and conditions set forth in this Contract, payment under this Contract may be withheld until such time as the Contractor performs its duties and responsibilities.

X. Third Party Beneficiary Rights. The parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Contract shall not be

construed so as to create such status. The rights, duties and obligations contained in this Contract shall operate only between the parties to this Contract, and shall inure solely to the benefit of the parties to this Contract. The provisions of this Contract are intended only to assist the parties in determining and performing their obligations under this Contract.

Y. Time is of the Essence. Time is of the essence in all provisions of the Contract.

Z. Titles Not Controlling. Titles of paragraphs are for reference only, and shall not be used to construe the language in this Contract.

AA. Waiver. The waiver of any breach of any term or condition in this Contract shall not be deemed a waiver of any prior or subsequent breach.

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9. **Signatures.** By signing this Contract, the parties certify that they have read and understood it, that they agree to be bound by the terms of the Contract, and that they have the authority to sign it.

This Contract is not binding on either party until approved by A&I Procurement and the Governor of the State of Wyoming or his designee, if required by Wyo. Stat. § 9-2-1016(b)(iv).

The effective date of this Contract is the date of the signature last affixed to this page.

AGENCY

Department of Family Services

Steve Corsi, Director

Date

Debra Dugan-Doty, Administrator
Juvenile Services Division

Date

CONTRACTOR

City of Cheyenne

Richard L. Kaysen
City Mayor

Date

Attested by:
Carol Intlekofer
City Clerk

Date

ATTORNEY GENERAL'S OFFICE APPROVED AS TO FORM

Cara B. Chambers # 79607
Cara Boyle Chambers
Assistant Attorney General

9/28/11
Date

**JUVENILE ACCOUNTABILITY BLOCK GRANT PROGRAM
FY 2010 APPLICATION**

Applicant Agency:	City of Cheyenne (Joint Proposal With Laramie County)		
Project Title:	Municipal Juvenile Court and Supporting Services		
Contact Person & Agency:	Dick Berry, Clinical Director Youth Alternatives		
Mailing Address:	1328 Talbot Court Cheyenne, WY 82001		
Telephone Number:	307-637-6480	Fax Number:	307-637-6237
Email address:	dberry@cheyennecity.org		
Board of County Commissioner and/or City Mayor:	Mayor Rick Kaysen		
Telephone Number:	307-637-6300	Fax Number:	307-637-6378
Email address:	rkaysen@cheyennecity.org		
Identify total amount of grant request:	\$27,330		
Cash match requirement:	\$ 2,733		

Attachments:

- | | |
|------------------|--------------------------------------|
| 1. Attachment A: | Budget |
| 2. Attachment B: | Current Crime Reduction Plan |
| 3. Attachment C: | Waiver |
| 4. Attachment D: | Letter of Support |
| 5. Attachment E: | Juvenile Crime Enforcement Coalition |
| 6. Attachment F: | Summary of Recidivism Study |

Section 1: Statement of Need

Purpose:

The City of Cheyenne and Laramie County have a continuing partnership to provide early intervention services to young people appearing in the Municipal and Circuit Court. The JABG funds will be utilized to support the Juvenile Division of the Cheyenne Municipal Court.

The majority of juvenile offenders will have their first encounter with the juvenile justice system due to a misdemeanor violation. In Laramie County, the Cheyenne Municipal Court is the primary judicial body handling juvenile misdemeanor offenses.

The Municipal Juvenile Court is concerned about changing the juveniles behavior as well as holding the juvenile accountable. The Court also recognizes the important role the family plays.

It is the Court's belief that appropriate early intervention at the misdemeanor level is the best deterrent to future criminal involvement. The tragic problems young people are facing, i.e. drug and alcohol abuse, gangs, suicide, child abuse, etc. can only be resolved by starting early. Violent, aggressive juvenile behavior is a major issue in our society and our community. Early interventions address delinquent attitudes and behaviors before juveniles are resistant to change. Comprehensive interventions impact the individual's environment in multiple directions.

It should also be noted that previous funding from this grant enabled the establishment of a number of pre and post court alternatives for juveniles. This included the formation of the Juvenile Screening Committee, which works in coordination with the District Attorney's (D.A.) office to review juvenile citations as a part of the single point of entry process.

Need:

The need for services at the Municipal Court level has been addressed by several groups in the past several years, including:

- a. **Laramie County Community Juvenile Service Joint Powers Board:** In 2010 the Joint Powers Board conducted a Family Questionnaire Survey as a part of their application. Sixty-three percent (63%) of the respondents indicated they had involvement with the Municipal Court, 24% had involvement with the District Court and 13% had involvement with the Circuit Court.
- b. **Mark Martin Needs Assessment:** A juvenile detention needs assessment conducted in 2008 for Laramie County by Mark Martin of the Justice Solutions Group indicated: "Additional resources are needed to address the identified treatment needs of juveniles processed through the Municipal and Circuit Courts. Wyoming has historically had a higher than average out-of-home placement rate. Additional investments in community-based services at the front end may reduce the need for out-of-home care over time."
- c. **The Laramie County Methamphetamine Strategy Workgroup in 2007:** In their strategy for community action they identified increasing accessibility and services at the lower court level as a high priority.

The majority of juveniles in Laramie County continue to be cited into the Municipal Court in Laramie County. The single point of entry process was implemented in July of 2009 and the majority of cases (71%) continue to be referred to the Municipal

Court for handling. The following is a statistical breakdown of the non-traffic juvenile cases filed in Municipal Court from January 1, 2010 through December 31, 2010:*

- 978 juvenile citations were issued
- 771 juvenile cases were screened
- 11 juvenile cases were requested by the District Attorney
- 17 juvenile cases were referred to the D.A. by the Committee
- 206 juveniles were cited to court because of a school initiated complaint
- 207 juvenile cases deferred for services
- 246 juvenile cases referred to services post adjudication
- 453 total juvenile cases were referred to Youth Alternatives for services (i.e. supervised probation, community service, drug and alcohol, counseling, mentoring etc..)

***Note:**

- A juvenile may have more than one citation issued on the same docket.
- An additional 280 juveniles were cited into the Laramie County Circuit Court.

Organization's Experience:

The Juvenile Municipal Court operates under the supervision of the Sr. Municipal Court Judge and was established under City Ordinances in 1971. The services provided to the Court were also established under City Ordinances at the same time. The Office of Youth Alternatives was established in 1971 by the City to provide those services. The program has been recognized both locally and on a national level for it's services to troubled children and families.

Section 2: Project Goals and Objectives

a. How will the project address the identified needs of the community.

The City of Cheyenne and Laramie County propose to continue utilizing the JAIBG funds to support the operation of a separate court for juveniles within the Cheyenne Municipal Court. The Cheyenne Municipal Court utilizes a problem solving approach that relies on providing quick and thorough consequences and services to juvenile offenders. This is consistent with best practice methods that suggest consequence and/or intervention are more effective the timely they are applied to the behavior. The Municipal Court tries to hear cases as close to the date of the accused infraction as possible. This policy places a considerable amount of stress on the Court to consistently expedite these cases.

Although the community must be protected, it is important to treat juvenile offenders differently from adults. They almost always have accompanying family problems, relationship issues, school issues, and the like. Dealing with juveniles requires a holistic perspective that protects the community and corrects the juvenile's behavior while simultaneously treating the emotional and behavioral issues.

Municipal Courts play a key role in providing early intervention services to juvenile offenders. They are uniquely positioned to be in the front line of services to juveniles because of the following reasons:

- They are generally the first point of contact for most juveniles.
- They are more connected to the children and families in their communities.
- They are more accessible and timely.
- Their informality is a strength.
- They keep the community involved.

The philosophy of Laramie County continues to be to provide early intervention in as least a restrictive setting as possible for juvenile offenders. Early intervention is most effective if it occurs at critical points of penetration into the juvenile justice system. Critical points of penetration refers to the specific points in the juvenile justice system at which decisions are made which effect a juveniles future in the system. Municipal Courts serve as an effective deterrent to future criminal behavior. This was evident in a study completed in 2008 on juveniles receiving services through the Municipal and Circuit Court in Cheyenne. The study indicated 87.2% of the juveniles receiving services in the lower court were not convicted of an additional offense in District Court. (See a summary of the study in Attachment D).

b. What Purpose Area will the project address?

This project will address the goals outlined in Purpose Area # 3: "Court staffing and Pretrial services. Hiring juvenile court judges, probation officers, and court-appointed defenders and special advocates, and funding pre-trial services (including mental health screening and assessment) for juvenile offenders, to promote the effective and expeditious administration of the juvenile justice system."

The JABG funds will continue to be utilized to support partial funding for the Municipal Court Juvenile Judge. The additional court staffing promotes the accelerated handling of juvenile hearings which meets the needs describe in the section above.

- ☒ The interest of public safety and juvenile crime control will be better served by expending the funds in a proportion other than the 45 and 35 percent minimums.

c. What is the criteria for assessing the effectiveness?

This information is also provided in the Section # 5, Project Evaluation below. The project will be evaluated based on the reporting requirements specified under the Wyoming JABG sub-award. This information will be reported quarterly to the City of Cheyenne and Laramie County and submitted to the Department of Family Services as requested in a written report. The performance measures will include but not be limited to:

- Number of youth served.
- Percentage of eligible youth served using graduated sanctions.
- Number of program youth completing program requirements.
- Number of program youth who do not complete the program(s)
- Results of exit surveys.

d. How do you use graduated sanctions?

Many of the juveniles referred to the Municipal Court have a myriad of problems, such as school issues, substance abuse and family conflict. It should be expected that these juveniles will need time to adjust to new requirements and accept the support available to them. Graduated sanctions are a cornerstone of an effective early intervention program. They allow the juvenile time to adjust his behavior and the family time to develop new skills without immediate, more severe consequences. The sanctions will be individualized to fit the needs of the participants and their families.

Section 3: Project Design

As indicated, in Laramie County, both the Circuit and Municipal Court handle juvenile misdemeanor cases, however, the majority of cases are seen by the Municipal Court (77% Municipal & 23% Circuit) The City of Cheyenne Office of Youth Alternatives provides court services to both courts. Although, every attempt is made to provide special care to juveniles they are considered adults in the Circuit Court. The City of Cheyenne has established a Juvenile Court through City ordinances. The Municipal Juvenile Court is conducted similarly to a "Family Court." The following are the key components of the Court:

- a. All cases are screened by the Juvenile Screening Committee prior to attending court. The Screening Committee is a multi-disciplinary group that meets on a weekly basis.
- b. A juvenile judge is appointed by the Mayor of the City of Cheyenne and has specialized training in adolescent and family behavior.
- c. The juvenile court is responsible for overseeing all juvenile matters and scheduling court hearings in a timely manner to allow for quick disposition of juvenile cases.
- d. The juvenile judge is responsible for overseeing the programs associated with the Court and for providing direct supervision to the Court Services Coordinator.
- e. The juvenile judge is responsible for ensuring that parents are involved in the process and sentence imposed by the Court.

Section 4: Project Staff

The JABG support will provide partial funding for the Municipal Court Juvenile Judge and supporting services. This position will directly facilitate improved coordination and services to juveniles in Cheyenne and Laramie County.

Section 5: Project Evaluation

The project will be evaluated based on the reporting requirements specified under the Wyoming JABG sub-award. This information will be reported quarterly to the City of Cheyenne and Laramie County and submitted to the Department of Family Services as requested in a written report. The performance measures will include but not be limited to:

- Number of youth served.
- Percentage of eligible youth served using graduated sanctions.
- Number of program youth completing program requirements.
- Number of program youth who do not complete the program(s)
- Results of exit surveys.

Section 6: Project Site

The project activities will take place at the Municipal Court at 309 West 20th Street, Room 2100, Cheyenne, WY 82001. Program administration and evaluation will take place at the Office of Youth Alternatives, 1328 Talbot Ct., Cheyenne, WY 82001.

Section 7: Community Support

This application is being submitted on behalf of the Mayor and City Council of the City of Cheyenne and Board of Commissioners of Laramie County. These two government entities represent 100% of the service area population.

A letter of commitment and support is also included from the Juvenile Community Services Board, which will hereinafter serve as the Juvenile Crime Enforcement Coalition, for the continued funding of this project. The board meets monthly and a list of the members is included in Attachment B.

Section 8: Budget (See Attachment A)

<u>Category</u>	JABG	City & County	Project Budget
Juvenile Judge	\$22,330	\$2,733	\$25,063
Support services (i.e. probation officers, community service, etc.)	\$ 5,000		\$ 5,000

Total Project Request: \$27,330 \$2,733 \$30,063

Budget Narrative

The City of Cheyenne and Laramie County are proposing to combine their funds to provide the services. The funding will be utilized to partially fund the Municipal Court Juvenile Judge and support services in the Municipal Court. The funding provides minimal support other Court services including the facilitation of the Juvenile Screening Committee. However, those services remain in place as a result of ongoing support from the City and the County.

Attachment A: Budget

Category	Grant Funds	Cash Match	TOTAL
PERSONNEL			
STAFF	\$27,330	\$2,733	\$30,063
CONSULTANTS			
TOTAL PERSONNEL			\$30,063
SPACE COSTS (rent/utilities)			
TELEPHONE			
SUPPLIES			
TRAVEL			
OTHER COSTS (please explain)			
TOTAL NON-PERSONNEL			-0-

TOTAL PROJECT BUDGET			\$30,063
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Attachment B: Current Crime Reduction Plan

Laramie County Community Juvenile Community Service Board Members:

Diane Lozano, Public Defender; Betsy Putnam, City of Cheyenne, Alfrieda Gonzales, LCCP; Ronn Jeffrey, Municipal Court; Esther Davidson, LCSD # 2; Ross McKelvey, Public Defender, Dr. Richard Berry, Youth Alternatives; Jeff Lamm, DFS; Gus Lopez, Public Health; Jeff Schutz, Police Department; Danny Glick, Sheriff; Bill Long, Detention; Greg Jones, District Attorney; Gay VanHorn, LCSD # 1; Rick Robinson, Mental Health. (See Attachment E)

The following summary is consistent with the strategic plan recently submitted by the Juvenile Community Service Board for Laramie County..

CRIME REDUCTION PLAN

To identify the existing needs and services available in Laramie County and the City of Cheyenne for juveniles involved in the juvenile justice system.

To encourage the establishment of partnerships between the various service providers to ensure quality and appropriate services are available to juveniles in our City and County.

To coordinate the efforts of the various courts and agencies to ensure that information sharing regarding juveniles in the juvenile justice system is available. This will allow for more informed decisions regarding early identification, control, supervision and counseling of juveniles and their families.

To encourage and assist in the development of primary prevention programs that will involve both the parents and the youth. The programs will consist of education and treatment for juveniles identified as high risk prior to any court involvement.

To encourage the development of mentoring program and other asset building programs that involve adults and juveniles working together. Additionally, to involve juveniles in positive community service when possible.

To develop programs that are directly connected to the courts and law enforcement to divert first-time and minor offenders from the juvenile justice system. Research has proven that the further a juvenile penetrates into the system, the less likely he or she is to leave the system. Early intervention is a key to a successful juvenile justice program.

To develop programs designed to provide the Courts with sentencing alternatives that will appropriately consequence the youth and provide for interventions to change and prevent the juvenile from returning to the juvenile

justice system. These programs may include:

- a. **Incarceration:** Provide for appropriate detention alternatives for juveniles that comply with acceptable standards of care. These alternatives should provide for both the safety needs of the community and the juvenile and the counseling needs of the juvenile.
- b. **Supervised Probation:** Provide for services that will hold the juvenile accountable through tracking and facilitate change changes through intervening with the juvenile and his or her family. Supervised probation has proven to be effective in both pre-sentencing investigations and recommendation as well as behavior changes after sentencing.
- c. **Electronic Ankle Monitoring:** Provide for a variety of home detention options. These services not only decrease the need for incarceration but have proven effective at facilitating family involvement.
- d. **Chemical Testing:** Provide for chemical screening of juveniles that are convicted of substance abuse charges and juveniles that are accountable through supervised probation.
- e. **Community Service:** Provide opportunities for juveniles to account for their behavior by returning something to the community. These services encourage juveniles to become aware of the victims of their offenses and to be responsible for their behavior.
- f. **Counseling:** Provide for individual, group and family counseling services for juveniles and their families. These services will include appropriate assessment and treatment plans. The services should be offered in conjunction with the services outlined above as well as independently of them.

Attachment C: Laramie County Waiver

WAIVER OF DIRECT SUBGRANT AWARD
JUVENILE ACCOUNTABILITY INCENTIVE BLOCK GRANT
(FY 2010 JABG)

TO: State Advisory Council on Juvenile Justice
2300 Capitol Avenue, 3rd Floor
Cheyenne, WY 82002

The Laramie County Commissioners (Unit of Government) hereby waives its right to its Federal Fiscal Year 2010 allocated direct sub grant award in the amount of \$ _____ (JABG Allocation) and requests that our unit of government funds be awarded to City of Cheyenne (Designated lead unit of government.)
Municipal Court

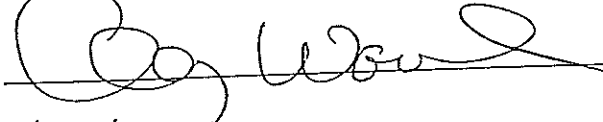
The JABG Plan submitted by this designated lead unit of government includes the needs of our unit of government and our award amount will be spent for our benefit through this Plan. Representation of our unit of government fully participated in the plan development and will continue to monitor and participate in the plan implementation.

Authorized Official for this Unit of Government: [Chair of County Commissioners; Mayor, City Manager, or Chair of City Council]

I hereby certify that the information provided on this page is correct.

Name: Gay Woodhouse

Title: Vice Chairman, Laramie County Commissioners

Signature: 

Date: 3/25/11

Attachment D: Letter of Support

Letter of Support

This agreement, made during the month of March, 2011, by and between representatives of the City of Cheyenne, Laramie County the Cheyenne Municipal Court, and the Laramie County Juvenile Services Board:

WHEREAS, the parties recognize that early intervention with juveniles in the least restrictive environment possible is in the best interest of juveniles.

WHEREAS, the parties recognize that appropriate assessments and services need to be provided at the lower court levels (i.e. Municipal and Circuit).

WHEREAS, the parties believe that a problem solving approach is considered best practice for juveniles first appearing in Court for minor offenses

NOW THEREFORE, the parties agree:

- i. To provide support for the services provided for through this project.
- ii. To review reported outcomes.
- iii. To continue to research opportunities to enhance and sustain the program.

IN WITNESS WHEREOF, the undersigned have signed this Letter of Support:

City of Cheyenne

Date

Laramie County

Date

Municipal Court

Date

Juvenile Community Services Board Date

Attachment D: Letter of Support

Letter of Support

This agreement, made during the month of March, 2011, by and between representatives of the City of Cheyenne, Laramie County the Cheyenne Municipal Court, and the Laramie County Juvenile Services Board:

WHEREAS, the parties recognize that early intervention with juveniles in the least restrictive environment possible is in the best interest of juveniles.

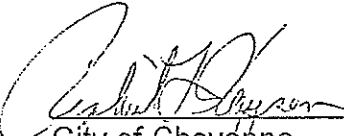
WHEREAS, the parties recognize that appropriate assessments and services need to be provided at the lower court levels (i.e. Municipal and Circuit).

WHEREAS, the parties believe that a problem solving approach is considered best practice for juveniles first appearing in Court for minor offenses

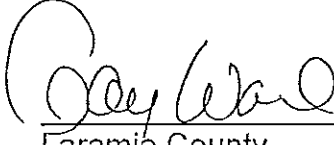
NOW THEREFORE, the parties agree:

- i. To provide support for the services provided for through this project.
- ii. To review reported outcomes.
- iii. To continue to research opportunities to enhance and sustain the program.

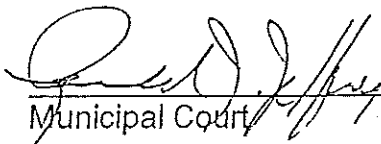
IN WITNESS WHEREOF, the undersigned have signed this Letter of Support:


City of Cheyenne

3/25/11
Date


Laramie County

3/25/11
Date


Municipal Court

3-25-11
Date


Juvenile Community Services Board

3/25/11
Date

Attachment E: Juvenile Crime Enforcement Coalition

Laramie County Community Juvenile Community Service Board Members:

Diane Lozano, Public Defender
Betsy Putnam, City of Cheyenne
Alfrieda Gonzales, Laramie County
Ronn Jeffrey, City of Cheyenne
Esther Davidson, LCSD # 2
Ross McKelvey, Public Defender
Dr. Richard Berry, Youth Alternatives
Jeff Lamm, Department of Family Services
Gus Lopez, Public Health
Jeff Schutz, Police Department
Danny Glick, Sheriff
Bill Long, Laramie County Sheriff, Detention
Greg Jones, District Attorney
Gay VanHorn, LCSD # 1
Rick Robinson, Mental Health

Attachment F: Recidivism Study Summary

ANALYSIS OF RECIDIVISM RATES
FOR
THE OFFICE OF
YOUTH ALTERNATIVES

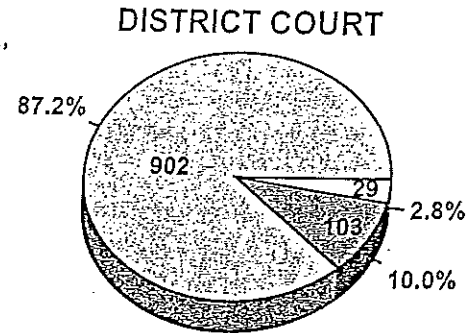
PREPARED BY:

Wyoming Center for Business & Economic Analysis, Inc.
1720 Carey Ave., Suite 520
Cheyenne, WY 82001
(307) 632-1347

JULY 2008

District Court

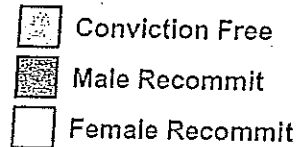
During the one to three year follow up period, 132 (males=103, females=29) or 12.8% of the 1,034 youth were convicted of a crime in District Court. Nine hundred two (87.2%) of those who successfully completed did not appear in District Court.



V. CONCLUSIONS

Limitations:

- The greatest limitation to the study was the inability to compare the study results with a similar group who did not complete the program during the same time period.
- Since participants in the study did not receive isolated services while in the various programs, determination of the effectiveness of a specific service on final outcomes could not be undertaken. For instance, one individual could have received multiple services within Youth Alternatives and additional services outside the agency. It would be impossible to determine the primary factor that influenced the individual's behavior. This might be an area for future study.
- The period studied exceeded traditional standards for assessing recidivism rates (one year from date of completion), and therefore recidivism rates herein may be greater than programs using only the one year standard.



Highlights:

- Ninety (90%) of the youth referred by the Municipal and Circuit Courts successfully completed their respective Youth Alternatives program.
- Youth who commit a misdemeanor offense and are adjudicated at the lower court level (Municipal and Circuit) are less likely to commit a more serious crime and be convicted at the higher court level (District Court). The majority (87.2%) of those juveniles served in the lower courts were not convicted of a crime in the higher court.
- Youth placed on supervised probation were more likely to recommit (41.9%) another crime. However, as indicated earlier, most of those offenses were at the lower court level and did not lead to higher court convictions.
- Of the youth who completed one of Youth Alternatives programs and was then later charged in the court system, his overall portrait would be a 15-year-old white male appearing in Municipal Court on an alcohol or drug possession charge.
- The number of males referred to the Youth Alternatives programs, outnumbered females by almost two to one (657 males to 357 females). Of the total number of youth who recommitted a crime in any court, forty-two percent (42%) were males compared to thirty percent (30%) females.

2010 Juvenile Accountability Block Grant (JABG)

2010 Progress and Expenditure Report Schedule

Period of Contract: July 1, 2011 through December 31, 2012

Due Date to Agency:	Period Covered:
October 15, 2011	July 1 – September 30, 2011
January 15, 2012	October 1 – December 31, 2011
April 15, 2012	January 1 – March 31, 2012
July 15, 2012	April 1– June 30, 2012
October 15, 2012	July 1 – September 30, 2012
January 15, 2013 Final Report	October 1 – December 31, 2012

***** Invoices must account for the cash match required for this grant. Please show what the cash match was as well as the amount invoiced.*****